

Development Consent

Section 4.38 of the *Environmental Planning and Assessment Act 1979*

As delegate of the Minister for Planning and Public Spaces under delegation executed on 9 March 2022, I approve the Development Application referred to in Schedule 1, subject to the conditions specified in Schedule 2.

These conditions are required to:

- prevent, minimise, or offset adverse environmental impacts;
- set standards and performance measures for acceptable environmental performance;
- require regular monitoring and reporting; and
- provide for the ongoing environmental management of the development



Chris Ritchie

Executive Director

Energy, Resources and Industry Assessments

Sydney

23 December 2025

SCHEDULE 1

Application Number:	SSD-69637456
Applicant:	HDI SYD1 Property Holdings Limited
Consent Authority:	Minister for Planning and Public Spaces
Site:	Lot 1 DP 109652 and Lot 1 DP 1189030
Development:	Expansion of existing Data Centre facility including two additional levels and the conversion of existing floor space into plant and electrical space, an increase of building height of 12 m (54.425 m total) and increase in IT load of 47.5 megawatts (MW)

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DEFINITIONS

Additional Information	Correspondence by the Applicant in response to the Department's request for information, including letters titled Additional Information In Response to Matters Raised By Department of Planning, Housing and Infrastructure And Other Agencies In Relation To DigiCo SYD1 Data Centre Expansion (SSD-69637456) prepared by Patch Planners Pty Ltd, dated 3 October 2025 and 7 October 2025
Applicant	HDI SYD1 Property Holdings Limited, or any person carrying out any development to which this consent applies
BCA	Building Code of Australia
BC Act	<i>Biodiversity Conservation Act 2016</i>
Carrier	Operator of a telecommunication network and/or associated infrastructure, as defined in section 7 of the <i>Telecommunications Act 1997</i> (Cth)
Certifier	A council or an accredited certifier (including principal certifiers) authorised under section 6.5 of the EP&A Act to issue Part 6 certificates
CEMP	Construction Environmental Management Plan
Conditions of this consent	Conditions contained in Schedule 2 of this document
Construction	The demolition and removal of buildings or works, the carrying out of works for the purpose of the development, including bulk earthworks, and erection of buildings and other infrastructure permitted by this consent
Council	City of Sydney Council
Day	The period from 7 am to 6 pm on Monday to Saturday, and 8 am to 6 pm on Sundays and Public Holidays
Demolition	The deconstruction and removal of buildings, sheds and other structures on the site
Department	NSW Department of Planning, Housing and Infrastructure (DPHI)
Development	The development described in Schedule 1, the EIS, Submissions Report and Additional Information, including the works and activities comprising partial demolition of existing building and construction and operation of expansion, as modified by the conditions of this consent
Development layout	The plans at Appendix 1 of this consent
Earthworks	Bulk earthworks, site levelling, import and compaction of fill material, excavation for installation of drainage and services, to prepare the site for construction
EIS	The Environmental Impact Statement titled DigiCo SYD1 Data Centre Expansion 390-422 Harris Street and 273 Pyrmont Street, Ultimo, prepared by Patch Planners Pty Ltd dated 10 April 2025, submitted with the application for consent for the development
Environment	As defined in section 1.4 of the EP&A Act
EPA	NSW Environment Protection Authority
EP&A Act	<i>Environmental Planning and Assessment Act 1979</i>
EP&A Regulation	Environmental Planning and Assessment Regulation 2021
EPL	Environment Protection Licence under the POEO Act
Evening	The period from 6 pm to 10 pm
Fibre-ready facility	As defined in section 372W of the <i>Telecommunications Act 1997</i> (Cth)
GFA	Gross Floor Area
Heritage	Encompasses both Aboriginal and historic heritage including sites that predate European settlement, and a shared history since European settlement
Heritage item	An item as defined under the <i>Heritage Act 1977</i> , and assessed as being of local, State and/ or National heritage significance, and/or an Aboriginal Object or Aboriginal Place as defined under the <i>National Parks and Wildlife Act 1974</i> , the World Heritage List, or the National Heritage List or Commonwealth Heritage List under the <i>Environment Protection and Biodiversity Conservation Act 1999</i> (Cth), or anything identified as a heritage item under the conditions of this consent

HPC	Housing and Productivity Contribution
Incident	An occurrence or set of circumstances that causes or threatens to cause material harm to the environment, and as a consequence of that environmental harm, may cause harm to the health and safety of human beings, and which may or may not be or cause a non-compliance Note: “Material harm” is defined in this consent
Land	Has the same meaning as the definition of the term in section 1.4 of the EP&A Act
Load curtailment	Means the use of the back-up generator system to reduce the development’s use of electricity from the Nation Electricity Market, and does not include instances where load shedding is initiated by the Australian Energy Market Operator in accordance with the National Electricity Rules
Material harm	Is harm that: a) involves actual harm to the environment that may include (but not be limited to) a leak, spill, emission other escape or deposit of a substance, and as a consequence of that environmental harm (pollution), may cause harm to the health or safety of people; or b) results in actual loss or property damage of an amount, or amounts in aggregate, exceeding \$10,000 (such loss includes the reasonable costs and expenses that would be incurred in taking all reasonable and practicable measures to prevent, mitigate or make good harm to the environment) Note: This definition excludes “harm” that is either authorised under this consent or any other statutory approval Note: For the purposes of this definition, material harm excludes incidents captured by Work Health and Safety reporting requirements
Minister	NSW Minister for Planning and Public Spaces (or delegate)
Mitigation	Activities associated with reducing the impacts of the development prior to or during those impacts occurring
Night	The period from 10 pm to 7 am on Monday to Saturday, and 10 pm to 8 am on Sundays and Public Holidays
Non-compliance	An occurrence, set of circumstances or development that is a breach of this consent
OEMP	Operational Environmental Management Plan
Operation	The use of a data centre as described in the EIS, Submissions Report and Additional Information
Principal Certifier	The certifier appointed as the principal certifier for the building work under section 6.6(1) of the EP&A Act
Planning Secretary	Secretary of the Department, or delegate
POEO Act	<i>Protection of the Environment Operations Act 1997</i>
Reasonable	Means applying judgement in arriving at a decision, taking into account: mitigation benefits, costs of mitigation versus benefits provided, community views, and the nature and extent of potential improvements
Rehabilitation	The restoration of land disturbed by the development to a good condition, to ensure it is safe, stable and non-polluting
Submissions Report (SR)	The Applicant’s response to issues raised in submissions received in relation to the application for consent for the development under the EP&A Act and includes the document titled Response to Submissions Report DigiCo SYD1 Data Centre Expansion, prepared by Patch Planning Pty Ltd and dated 02 September 2025
Sensitive receivers	A location where people are likely to work, occupy or reside, including a dwelling, school, hospital, office or public recreational area
Site	The land defined in Schedule 1
TfNSW	Transport for New South Wales
Waste	Has the same meaning as the definition of the term in the Dictionary to the POEO Act
Year	A period of 12 consecutive months

SCHEDULE 2
PART A ADMINISTRATIVE CONDITIONS

OBLIGATION TO MINIMISE HARM TO THE ENVIRONMENT

- A1. In addition to meeting the specific performance measures and criteria in this consent, all reasonable and feasible measures must be implemented to prevent, and if prevention is not reasonable and feasible, minimise any material harm to the environment that may result from the construction and operation of the development, and any rehabilitation required under this consent.

TERMS OF CONSENT

- A2. The development may only be carried out:
- (a) in compliance with the conditions of this consent;
 - (b) in accordance with all written directions of the Planning Secretary;
 - (c) in accordance with the EIS and Submissions Report and Additional Information;
 - (d) in accordance with the Development Layout in Appendix 1; and
 - (e) in accordance with the management and mitigation measures in Appendix 2.
- A3. Consistent with the requirements in this consent, the Planning Secretary may make written directions to the Applicant in relation to:
- (a) the content of any strategy, study, system, plan, program, review, audit, notification, report or correspondence submitted under or otherwise made in relation to this consent, including those that are required to be, and have been, approved by the Planning Secretary; and
 - (b) the implementation of any actions or measures contained in any such document referred to in condition A3(a).
- A4. The conditions of this consent and directions of the Planning Secretary prevail to the extent of any inconsistency, ambiguity or conflict between them and a document listed in condition A2(c) or A2(e). In the event of an inconsistency, ambiguity or conflict between any of the documents listed in condition A2(c) or A2(e), the most recent document prevails to the extent of the inconsistency, ambiguity or conflict.

LIMITS OF CONSENT

Lapsing

- A5. This consent lapses five years after the date from which it operates, unless the development has physically commenced on the land to which the consent applies before that date.

Back-up Generator System

- A6. The Applicant must ensure, at full operation of the development, the back-up generators installed on site do not exceed a total installed generating capacity of 140.4 megawatts.
- A7. The Applicant must ensure:
- (a) operation of the back-up generators (including testing, warm-up and cool-down) does not exceed 200 hours per year;
 - (b) no more than two (2) generators are tested at any one time; and
 - (c) the diesel fuel storage capacity of the site does not exceed 2,000 tonnes at any one time.

Note: For the purposes of condition A7, calculation of how many hours the back-up generators are tested, as a collective, should be based on the hours (in real time) that testing is in fact undertaken at the site per year. For example, five generators being tested concurrently over the course of an hour would count as one hour towards the threshold stipulated by condition A7 rather than five hours.

- A8. This development consent does not permit the use of the back-up generators:
- (a) for the purpose of generating electricity to be distributed by the National Electricity Market; or
 - (b) to support load curtailment at the site.

NOTIFICATION OF COMMENCEMENT

- A9. The date of commencement of each of the following phases of the development must be notified to the Planning Secretary in writing, at least one month before that date, or as otherwise agreed with the Planning Secretary:
- (a) construction;
 - (b) operation;
 - (c) full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating); and

- (d) cessation of operations.

A10. If the construction or operation of the development is to be staged, the Planning Secretary must be notified in writing, at least one month before the commencement of each stage (or other timeframe agreed with the Planning Secretary).

EVIDENCE OF CONSULTATION

A11. Where conditions of this consent require consultation with an identified party, the Applicant must:

- (a) consult with the relevant party prior to submitting the subject document to the Planning Secretary for approval; and
- (b) provide details of the consultation undertaken including:
 - (i) the outcome of that consultation, matters resolved and unresolved; and
 - (ii) details of any disagreement remaining between the party consulted and the Applicant and how the Applicant has addressed the matters not resolved.

STAGING, COMBINING AND UPDATING STRATEGIES, PLANS OR PROGRAMS

A12. With the approval of the Planning Secretary, the Applicant may:

- (a) prepare and submit any strategy, plan or program required by this consent on a staged basis (if a clear description is provided as to the specific stage and scope of the development to which the strategy, plan or program applies, the relationship of the stage to any future stages and the trigger for updating the strategy, plan or program);
- (b) combine any strategy, plan or program required by this consent (if a clear relationship is demonstrated between the strategies, plans or programs that are proposed to be combined); and
- (c) update any strategy, plan or program required by this consent (to ensure the strategies, plans and programs required under this consent are updated on a regular basis and incorporate additional measures or amendments to improve the environmental performance of the development).

A13. If the Planning Secretary agrees, a strategy, plan or program may be staged or updated without consultation being undertaken with all parties required to be consulted in the relevant condition in this consent.

A14. If approved by the Planning Secretary, updated strategies, plans or programs supersede the previous versions of them and must be implemented in accordance with the condition that requires the strategy, plan or program.

UTILITIES, SERVICES AND PUBLIC INFRASTRUCTURE

General Requirements

A15. Prior to the commencement of relevant construction works associated with the development, the Applicant must:

- (a) consult with the relevant owner and provider of services or public infrastructure that are likely to be affected by the development or that need to be installed as part of the development, to make suitable arrangements for relevant approvals, access to, diversion, protection and support of the affected services or infrastructure;
- (b) prepare a dilapidation report identifying the condition of all public infrastructure in the vicinity of the site (including roads, gutters and footpaths); and
- (c) submit a copy of the dilapidation report to the Planning Secretary and Council.

A16. Unless the Applicant and the applicable authority agree otherwise, the Applicant must:

- (a) repair, or pay the full costs associated with repairing, any public infrastructure that is damaged by carrying out the development;
- (b) relocate, or pay the full costs associated with relocating, any public infrastructure that needs to be relocated as a result of the development; and
- (c) obtain any relevant approval(s) from the relevant service provider(s), prior to undertaking construction of the corresponding utility works.

Sydney Water

A17. Prior to the commencement of operation of the development, the Applicant must obtain a Compliance Certificate for water and sewerage infrastructure servicing of the site under section 73 of the *Sydney Water Act 1994* where it exceeds the existing capacity of any existing Compliance Certificates on the site.

Fibre-Ready Facilities

A18. Prior to the issue of a Construction Certificate for any stage of the development, the Applicant (whether or not a constitutional corporation) is to provide evidence, satisfactory to the Certifier, that arrangements have been made for:

- (a) the installation of fibre-ready facilities to all individual lots and/or premises in the development to enable fibre to be readily connected to any premises that is being or may be constructed on those lots; and

- (b) the provision of fixed-line telecommunications infrastructure in the fibre-ready facilities to all individual lots and/or premises in the development demonstrated through an agreement with a carrier.

A19. Prior to the issue of an Occupation Certificate for the development the Applicant must demonstrate that the carrier has confirmed in writing it is satisfied that the fibre-ready facilities are fit-for-purpose.

DEMOLITION

A20. All demolition must be carried out in accordance with *Australian Standard AS 2601-2001 The Demolition of Structures* (Standards Australia, 2001).

STRUCTURAL ADEQUACY, EXTERNAL WALLS AND CLADDING

A21. All new buildings and structures, and any alterations or additions to existing buildings and structures, that are part of the development, must be constructed in accordance with the relevant requirements of the BCA.

Note:

- Under Part 6 of the EP&A Act, the Applicant is required to obtain construction and occupation certificates for the proposed building works.
- The EP&A (Development Certification and Fire Safety) Regulation 2021 sets out the requirements for the certification of the development.

A22. Prior to the issue of:

- (a) any Construction Certificate relating to the construction of external walls (including the installation of finishes and claddings such as synthetic or aluminium composite panels); and
- (b) an Occupation Certificate,

the Applicant must provide the Certifier with documented evidence that the products and systems proposed for use or used in the construction of external walls (including finishes and claddings such as synthetic or aluminium composite panels) comply with the requirements of the BCA.

A23. The Applicant must provide a copy of the documentation given to the Certifier to the Planning Secretary within seven days after the Certifier accepts it.

COMPLIANCE

A24. The Applicant must ensure that all of its employees, contractors (and their sub-contractors) are made aware of, and are instructed to comply with, the conditions of this consent relevant to activities they carry out in respect of the development.

HOUSING AND PRODUCTIVITY CONTRIBUTION

A25. Prior to the issue of a Construction Certificate for any part of the development, a housing and productivity contribution (HPC) in accordance with Table 1 must be paid for the development, as adjusted in accordance with condition A27.

Table 1 Housing and Productivity Contribution Amount

Housing and productivity contribution	Amount
Housing and productivity contribution (base component)	\$3,568.10
Transport project component	\$0
Total housing and productivity contribution	\$3,568.10

A26. At the time of payment, the amount of the HPC is to be adjusted in accordance with the Environmental Planning and Assessment (Housing and Productivity Contributions) Order 2024 (HPC Order).

The HPC may be made wholly or partly as a non-monetary contribution (apart from any transport project component) if the Minister administering the *Environmental Planning and Assessment Act 1979* agrees.

The HPC is not required to be made to the extent that a planning agreement excludes the application of Subdivision 4 of Division 7.1 of the *Environmental Planning and Assessment Act 1979* to the development, or the HPC Order exempts the development from the contribution.

The amount of the contribution may be reduced under the HPC Order, including if payment is made before 1 July 2025.

OPERATION OF PLANT AND EQUIPMENT

A27. All plant and equipment used on site, or to monitor the performance of the development, must be:

- (a) maintained in a proper and efficient condition; and
- (b) operated in a proper and efficient manner.

APPLICABILITY OF GUIDELINES

- A28. References in the conditions of this consent to any guideline, protocol, Australian Standard or policy are to such guidelines, protocols, Standards or policies in the form they are in as at the date of this consent.
- A29. However, consistent with the conditions of this consent and without altering any limits or criteria in this consent, the Planning Secretary may, when issuing directions under this consent in respect of ongoing monitoring and management obligations, require compliance with an updated or revised version of such a guideline, protocol, Standard or policy, or a replacement of them.

ADVISORY NOTES

- AN1.** All licences, permits, approvals and consents as required by law must be obtained and maintained as required for the development. No condition of this consent removes any obligation to obtain, renew or comply with such licences, permits, approvals and consents.

PART B SPECIFIC ENVIRONMENTAL CONDITIONS

NOISE AND VIBRATION

Hours of Work

B1. The Applicant must comply with the hours detailed in Table 2 below.

Table 2 Hours of Work

Activity		Day	Time
Construction		Monday – Friday	7 am to 6 pm
		Saturday	8 am to 1 pm
Operation	Back-up generator testing	Monday – Saturday Sunday	7 am to 6 pm 8 am to 6 pm
	All other activities	Monday – Sunday	24 hours

B2. Works outside of the hours identified in condition B1 may be undertaken in the following circumstances:

- works that are inaudible at the nearest sensitive receivers;
- works agreed to in writing by the Planning Secretary;
- for the delivery of materials required outside these hours by the NSW Police Force or other authorities for safety reasons; or
- where it is required in an emergency to avoid the loss of lives, property or to prevent environmental harm.

Construction Noise Limits

B3. The development must be constructed to achieve, as far as feasible and reasonable, the construction noise management levels detailed in the *Interim Construction Noise Guideline* (DECC, 2009). All feasible and reasonable noise mitigation measures must be implemented and any activities that could exceed the construction noise management levels must be identified and managed in accordance with the management and mitigation measures in Appendix 2 of this consent and the development's CNMP (see condition B5).

Vibration Criteria

B4. Vibration caused by construction at any structure outside the site must be limited to:

- for structural damage, the latest version of *DIN 4150-3 (2016-12) Vibration in Buildings – Part 3: Effects on Structures* (German Institute for Standardisation, 2016) and *BS 7385-2 Evaluation and measurement for vibration in buildings Guide to damage levels from groundborne vibration* (British Standards Institution, 1993); and
- for human exposure, the acceptable vibration values set out in the *Environmental Noise Management Assessing Vibration: a technical guideline* (DEC, 2006) (as may be updated or replaced from time to time).

Construction Noise Management Plan

B5. The Applicant must prepare a Construction Noise Management Plan (CNMP) for the development to the satisfaction of the Planning Secretary. The CNMP must form part of a CEMP in accordance with condition C2 and must:

- be prepared by a suitably qualified and experienced noise expert;
- describe the procedures to achieve the noise management levels specified in condition B3;
- describe the measures to be implemented to manage high noise generating works (such as piling);
- describe the community consultation undertaken in relation to construction noise management and outline any strategies developed with the community to manage high noise generating works or to provide respite periods; and
- include a complaints management system that would be implemented for the duration of the development.

B6. The Applicant must:

- not commence construction until the CNMP required by condition B5 is approved by the Planning Secretary; and
- implement the most recent version of the CNMP approved by the Planning Secretary for the duration of construction.

Operational Noise Limits

- B7. The Applicant must ensure that noise generated by operation of the development does not exceed the noise limits in Table 3 below.

Table 3 Noise Limits (dB(A))

Location	At all other times		
	Day L _{Aeq} (15 minute)	Evening L _{Aeq} (15 minute)	Night L _{Aeq} (15 minute)
277 Pyrmont Street (R1)	53	44	42
495 Harris Street, Ultimo (R3)	53	45	43
Ada Place (R5)	53	45	43
313 Harris Street and 1-19 Allen Street, Pyrmont (R6 & R7)	53	45	43
Bulwara Road (R9)	51	45	43
Oaks Sydney (R8b)	55	45	43
360-380 Harris Street, Pyrmont (R12a)	57	48	47
Commercial Receivers	58 (When in use)		
Passive Recreation Receivers	48		

The noise limits outlined in Table 3 above do not apply during a power outage event.

Note: Noise generated by the development is to be measured in accordance with the relevant monitoring performance procedures and exemptions (including certain meteorological conditions) of the NPfI. Refer to the plan in Appendix 2 of this consent for location of residential receivers

Operational Noise Verification Report

- B8. Within three months of the commencement of full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating), or as otherwise directed by the Planning Secretary, the Applicant must prepare and submit a noise verification report for the development. The noise verification report must:
- be prepared to the satisfaction of the Planning Secretary by a suitably qualified and experienced acoustic consultant;
 - demonstrate that noise verification has been carried out in accordance with:
 - AS 1055:2018 Acoustics – Description and measurement of environmental noise (Standards Australia, 2018); and
 - Approved Methods for the Measurement and Analysis of Environmental Noise in NSW (EPA, 2022);
 - the monitoring and reporting requirements detailed in Section 7 of the NPfI;
 - include:
 - noise measurements taken during general operation and during back-up generator testing;
 - details of the development's operating conditions at the time of monitoring and, if required, adjustments to measured noise levels to account for the development's maximum operating capacity;
 - an analysis of:

- i. the prevailing meteorological conditions;
 - ii. applicable corrections for annoying noise characteristics (as per Fact Sheet C of the NPfl); and
 - iii. the development's compliance with noise limits specified in condition B7; and
- (iv) a description of additional at-source and transmission pathway mitigation measures implemented, and/or a description of contingency measures to be implemented (including a timetable for the implementation of any required actions), to address any exceedance of the noise limits specified in condition B7.

AIR QUALITY

Dust Minimisation

- B9. The Applicant must take all reasonable steps to minimise dust generated during all works authorised by this consent.
- B10. During construction, the Applicant must ensure that:
- (a) exposed surfaces and stockpiles are suppressed by regular watering or other alternative suppression method;
 - (b) all trucks entering or leaving the site with loads have their loads covered;
 - (c) trucks associated with the development do not track dirt onto the public road network; and
 - (d) land stabilisation works are carried out progressively on site to minimise exposed surfaces.

Air Quality Discharges

- B11. The Applicant must install and operate equipment in line with best practice to ensure that the development complies with all load limits, air quality criteria/air emission limits and air quality monitoring requirements as specified in the Protection of the Environment Operations (Clean Air) Regulation 2022.

Back-up Generator System

- B12. The Applicant must ensure the design, installation and operation of the back-up generators and/or the associated enclosures do not preclude the ability for additional air pollution emission controls to be retrofitted.

Air Quality Management Plan

- B13. Prior to the commencement of operation of the development, the Applicant must prepare an Air Quality Management Plan (AQMP) to the satisfaction of the Planning Secretary. The AQMP must form part of the OEMP required by condition C5 and must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) detail and rank all emissions from all sources of the development, including particulate emissions;
 - (c) describe a program that is capable of evaluating the performance of the operation against the criteria in the *Approved Methods for Modelling and Assessment of Air Pollutants in NSW* (EPA, 2022), including during a power outage event, and determining compliance with key performance indicators;
 - (d) identify any control measures that will be implemented for each emission source, including provision of any back-up generator testing respite period/s;
 - (e) a procedure for the periodic review of all available air pollution emissions controls for back-up generator systems
 - (f) outline the monitoring procedure/s which would be implemented during each power outage event; and
 - (g) include a Power Outage Notification Protocol for the development that must:
 - (i) identify the neighbouring properties which would be notified should a power outage event last 30 minutes or more;
 - (ii) identify the trigger point(s) for notifying neighbouring properties that the back-up generator system is operating; and
 - (iii) detail how these properties would be made aware that the development's back-up generator system is required to operate for the duration of the power outage event.
- B14. The Applicant must:
- (a) not commence operation until the AQMP required by condition B13 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the AQMP approved by the Planning Secretary for the duration of the development.

Odour Management

- B15. The Applicant must ensure the development does not cause or permit the emission of any offensive odour (as defined in the POEO Act).

TRAFFIC AND ACCESS

Construction Traffic Management Plan

- B16. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Traffic Management Plan (CTMP) for the development to the satisfaction of the Planning Secretary. The plan must form part of the CEMP required by condition C2 and must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) be prepared in consultation with Council;
 - (c) detail the measures that are to be implemented to ensure road safety and network efficiency during construction;
 - (d) detail heavy vehicle routes, access and parking arrangements;
 - (e) provide details of any oversized vehicles required for construction;
 - (f) provide details of traffic control measures (such as an escort or other suitable traffic control measure) to manage the movement of oversized vehicles along public roads;
 - (g) include a Driver Code of Conduct to:
 - (i) minimise the impacts of earthworks and construction on the local and regional road network;
 - (ii) minimise conflicts with other road users;
 - (iii) minimise road traffic noise; and
 - (iv) ensure truck drivers use specified routes;
 - (h) include a program to monitor the effectiveness of these measures; and
 - (i) if necessary, detail procedures for notifying residents and the community (including local schools), of any potential disruptions to routes.
- B17. The Applicant must:
- (a) not commence construction until the CTMP required by condition B16 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the CTMP approved by the Planning Secretary for the duration of construction.

Roadworks and Access

- B18. The Applicant must obtain a Road Occupancy Licence (ROL) from TfNSW Transport Management Centre for any works that may impact on traffic flows on Harris Street, Ultimo during construction.
- B19. Access to the site via Harris Street is restricted during the construction of the development.

SOILS, WATER QUALITY AND HYDROLOGY

Discharge Limits

- B20. The development must comply with section 120 of the POEO Act, which prohibits the pollution of waters, except as expressly provided for in an EPL.
- B21. Construction access to the site is restricted to local road network via Pyrmont Street and Quarry Street.

Stormwater Management System

- B22. The development must connect to the existing stormwater management system installed on the site accordance with applicable Australian Standards.

HAZARDS AND RISK

Dangerous Goods

- B23. The quantities of dangerous goods stored and handled at the site must be below the threshold quantities listed in the Department's *Hazardous and Offensive Development Application Guidelines – Applying SEPP 33* at all times.
- B24. Dangerous goods, as defined by the Australian Dangerous Goods Code, must be stored and handled strictly in accordance with:
- (a) all relevant Australian Standards; and
 - (b) for liquids:
 - (i) a minimum bund volume requirement of 110% of the volume of the largest single stored volume within the bund; and
 - (ii) the EPA's *Storing and Handling of Liquids: Environmental Protection – Participants Manual*.

- B25. In the event of an inconsistency between the requirements of conditions B23(a) and B23(b), the most stringent requirement must prevail to the extent of the inconsistency.

Fire Safety Study

- B26. At least one month prior to the commencement of construction of the development (except for construction of those preliminary works that are outside the scope of the hazard studies), or within such further period as the Planning Secretary may agree, the Applicant must prepare and submit, for the approval of the Planning Secretary, a Fire Safety Study (FSS) for the development. The FSS must:
- (a) meet the operational requirements of FRNSW;
 - (b) address the relevant aspects of:
 - (i) *Hazardous Industry Planning Advisory Paper No. 2, 'Fire safety study guidelines'* (DoP, 2011); and
 - (ii) *Best practice guidelines for contaminated water retention and treatment systems* (NSW HMPCC, 1994);
 - (c) consider the operational capability of local fire agencies and the need for the development to achieve an adequate level of on-site fire and life safety independence;
 - (d) verify the final design of the fire safety systems for the development complies with:
 - (i) *AS/NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles* (Standards Australia, 2000);
 - (ii) *IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications* (IEC, 2022); and
 - (iii) *AS 1940:2017 The storage and handling of flammable and combustible liquids* (Standards Australia, 2017);
 - (e) consult with FRNSW and report on the outcome of consultation with FRNSW regarding the fire safety system's compliance with *Loss Prevention Data Sheet 5-32 – Data centres and related facilities* (FM Global Property, 2022); and
 - (f) include FRNSW's correspondence stating that the FSS has been prepared to their satisfaction.

In the event of an inconsistency between the requirements listed in subpoints (d)(i) to (d)(iii) above, the requirements as agreed to with FRNSW shall prevail to the extent of the inconsistency.

- B27. The Applicant must not commence construction of the development (except for construction of preliminary works that are outside the scope of the fire-related reports or studies) until the FSS required by condition B26 has been approved by FRNSW and the Planning Secretary.

Emergency Plan

- B28. At least two months prior to the commencement of commissioning of the development, or within such further period as the Planning Secretary may agree, the Applicant must submit a comprehensive Emergency Plan and detailed emergency procedures for the development to the Planning Secretary and FRNSW. The Emergency Plan must include consideration of the safety of all people outside of the development who may be at risk from the development. The plan must be prepared in accordance with the Department's *Hazardous Industry Planning Advisory Paper No. 1, 'Emergency Planning'* (DoP, 2011).

Emergency Services Information Package

- B29. From the commencement of operation and for the life of the development, an Emergency Services Information Package, developed in accordance with the FRNSW *Fire Safety Guideline – Emergency Services Information Package and Tactical Fire Plans*, must be stored in an emergency information cabinet directly adjacent to the main entry point to the site.

BIODIVERSITY

Tree Protection Measures

- B30. All street trees along Pyrmont Street, Quarry Street and Harris Street identified for retention in the Applicant's Mitigation Measures (in Appendix 3 of this consent) are to be retained and protected in accordance with the latest version of Australian Standard 4970:2009 – *Protection of Trees on Development* for the duration of the development.

WASTE MANAGEMENT

Construction and Demolition Waste Management

- B31. Prior to the commencement of construction of the development, the Applicant must prepare a Construction and Demolition Waste Management Plan for the development to the satisfaction of the Planning Secretary. The Plan must form part of a CEMP in accordance with condition C2 and must:
- (a) detail the quantities of each waste type generated during construction and the proposed reuse, recycling and disposal locations; and

- (b) be implemented for the duration of construction works.

B32. The Applicant must:

- (a) not commence construction until the Construction and Demolition Waste Management Plan is approved by the Planning Secretary.
- (b) implement the most recent version of the Construction and Demolition Waste Management Plan approved by the Planning Secretary.

VISUAL AMENITY

Lighting

B33. The Applicant must ensure the lighting associated with the development:

- (a) complies with the latest version of AS 4282-2019 - *Control of the obtrusive effects of outdoor lighting* (Standards Australia, 2019); and
- (b) is mounted, screened and directed in such a manner that it does not create a nuisance to surrounding properties or the public road network.

PART C ENVIRONMENTAL MANAGEMENT, REPORTING AND AUDITING

ENVIRONMENTAL MANAGEMENT

Management Plan Requirements

- C1. Management plans required under this consent must be prepared in accordance with relevant guidelines, and include:
- (a) a condition compliance table for that plan;
 - (b) detailed baseline data (where required);
 - (c) details of:
 - (i) the relevant statutory requirements (including any relevant approval, licence or lease conditions);
 - (ii) any relevant limits or performance measures and criteria; and
 - (iii) the specific performance indicators that are proposed to be used to judge the performance of, or guide the implementation of, the development or any management measures;
 - (d) a description of the measures to be implemented to comply with the relevant statutory requirements, limits, or performance measures and criteria;
 - (e) a program to monitor and report on the:
 - (i) impacts and environmental performance of the development; and
 - (ii) effectiveness of the management measures set out pursuant to paragraph (d) above;
 - (f) a contingency plan to manage any unpredicted impacts and their consequences and to ensure that ongoing impacts reduce to levels below relevant impact assessment criteria as quickly as possible;
 - (g) a program to investigate and implement ways to improve the environmental performance of the development over time;
 - (h) a protocol for managing and reporting any:
 - (i) incident and any non-compliance (specifically including any exceedance of the impact assessment criteria and performance criteria);
 - (ii) complaint;
 - (iii) failure to comply with statutory requirements; and
 - (i) a protocol for periodic review of the plan.

Note: The Planning Secretary may waive some of these requirements if they are unnecessary or unwarranted for particular management plans

CONSTRUCTION ENVIRONMENTAL MANAGEMENT PLAN

- C2. The Applicant must prepare a Construction Environmental Management Plan (CEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C3. As part of the CEMP required under condition C2 of this consent, the Applicant must include the following:
- (a) Construction Noise Management Plan (see condition B5);
 - (b) Construction Traffic Management Plan (see condition B16);
 - (c) Construction and Demolition Waste Management Plan (see condition B30); and
 - (d) Community Consultation and Complaints Handling.
- C4. The Applicant must:
- (a) not commence construction of the development until the CEMP is approved by the Planning Secretary; and
 - (b) carry out the construction of the development in accordance with the CEMP approved by the Planning Secretary and as revised and approved by the Planning Secretary from time to time.

OPERATIONAL ENVIRONMENTAL MANAGEMENT PLAN

- C5. The Applicant must prepare an Operational Environmental Management Plan (OEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C6. As part of the OEMP required under condition C5 of this consent, the Applicant must include the following:
- (a) describe the role, responsibility, authority and accountability of all key personnel involved in the environmental management of the development;
 - (b) describe the procedures that would be implemented to:
 - (i) keep the local community and relevant agencies informed about the operation and environmental performance of the development;
 - (ii) receive, handle, respond to, and record complaints;

- (iii) resolve any disputes that may arise;
- (iv) respond to any non-compliance;
- (v) respond to emergencies; and
- (c) include the following environmental management plans:
 - (i) Air Quality (see condition B13).

C7. The Applicant must:

- (a) not commence operation until the OEMP is approved by the Planning Secretary; and
- (b) operate the development in accordance with the OEMP approved by the Planning Secretary (and as revised and approved by the Planning Secretary from time to time).

REVISION OF STRATEGIES, PLANS AND PROGRAMS

- C8. Prior to the commencement of construction of any works associated with any modification to this consent, or within three months of:
- (a) the submission of an incident report under condition C10;
 - (b) the submission of a Compliance Report under condition C14;
 - (c) the submission of a Back-up Generator Incident Report under condition C17;
 - (d) the approval of any modification of the conditions of this consent; or
 - (e) the issue of a direction of the Planning Secretary under condition A2(b) which requires a review,
- the strategies, plans and programs required under this consent must be reviewed, and the Planning Secretary must be notified in writing of the outcomes of any review.
- C9. If identified as part of the review process (see condition C8) or considered necessary to improve the environmental performance of the development, the Applicant must ensure the strategies, plans and programs required under this consent are revised, to the satisfaction of the Planning Secretary.

The revised document(s) must be submitted to the Planning Secretary for approval within six weeks of the review process taking place, or in the case of a modification approving the construction of any works, prior to the commencement of construction of those works, or such other timing as agreed by the Planning Secretary.

Note: *This is to ensure strategies, plans and programs are updated on a regular basis and to incorporate any recommended measures to improve the environmental performance of the development.*

REPORTING AND AUDITING

Incident Notification, Reporting and Response

- C10. The Applicant must notify the Department within 24 hours of becoming aware of an incident. The notification must be made via the NSW planning portal (Major Projects) and address details of the incident including:
- (a) date, time and location;
 - (b) a brief description of what occurred and why it has been classified as an incident;
 - (c) a description of what immediate steps were taken in relation to the incident; and
 - (d) identifying a contact person for further communication regarding the incident.
- C11. The Applicant must provide the Department with a subsequent incident report in accordance with the requirements set out in Appendix 4 of this consent.

Non-Compliance Notification

- C12. Within seven days of becoming aware of any non-compliance, the Applicant must notify the Department of the non-compliance, in writing, via the NSW planning portal (Major Projects).
- C13. A non-compliance notification submitted under condition C12 must identify the development (including the development application number and name), set out the condition of this consent that the development is non-compliant with, why it does not comply, the reasons for the non-compliance (if known), and what actions have been undertaken, or will be undertaken, and when, to address the non-compliance.

Note: *A non-compliance which has been notified as an incident does not need to also be notified as a non-compliance.*

Compliance Reporting

- C14. Within the first year of commencement of operation of the development, and in the same month each subsequent year (or such other timing as agreed by the Planning Secretary), the Applicant must submit a Compliance Report to the Planning Secretary, which reviews the environmental performance of the development to the satisfaction of the Planning Secretary. Each Compliance Report must:
- (a) be prepared in accordance with the *Compliance Reporting Post Approval Requirements* (DPIE, 2020);

- (b) identify any trends in the monitoring data over the life of the development;
- (c) identify any discrepancies between the predicted and actual impacts of the development, and analyse the potential cause of any significant discrepancies; and
- (d) describe what measures will be implemented over the next year to improve the environmental performance of the development.

C15. The Applicant must make each Compliance Report publicly available no later than 60 days after submitting it to the Planning Secretary and notify the Planning Secretary in writing at least seven days before this is done.

Back-Up Generator Annual Report

C16. For the life of the development (or such other time as agreed to in writing by the Planning Secretary), the Applicant must maintain a log of all instances where the back-up generators are used and/or tested at the site, excluding those instances where a Back-up Generator Incident Report is required to be submitted (see C17). The log must detail the following:

- (a) the date and time of operation;
- (b) the purpose of operation;
- (c) the total number of back-up generators operated;
- (d) the operating load of each generator; and
- (e) the duration of operation.

A copy of the log must be made available to the Planning Secretary upon request.

Back-up Generator Incident Report

C17. Within 30 days of the back-up generators being used to power any part of the development during a power outage event (or as otherwise agreed to by the Planning Secretary), the Applicant must prepare and submit a Back-up Generator Incident Report for the development to the satisfaction of the Planning Secretary. The report must include:

- (a) details regarding the:
 - (i) date and time of the power outage event;
 - (ii) date and time of back-up generator operation;
 - (iii) identification of the back-up generators used and the total number of generators operated;
 - (iv) duration of operation for each generator and the total duration of generator use;
 - (v) total quantity of diesel fuel used by the back-up generators;
 - (vi) total amount of electricity produced by the back-up generators;
- (b) if relevant, confirmation regarding whether neighbouring properties were made aware that the development's back-up generator system was operating (see condition B13(f));
- (c) assessment of any air quality impacts resulting from the operation of the back-up generators; and
- (d) assessment and recommendation of additional measures that could be implemented to reduce future impacts, including but not limited to reduced likelihood of generator operation and retrofit of generator emission controls.

Monitoring and Environmental Audits

C18. Any condition of this consent that requires the carrying out of monitoring or an environmental audit, whether directly or by way of a plan, strategy or program, is taken to be a condition requiring monitoring or an environmental audit under Division 9.4 of Part 9 of the EP&A Act. This includes conditions in respect of incident notification, reporting and response, non-compliance notification, compliance reporting and independent auditing.

Note: For the purposes of this condition, as set out in the EP&A Act, "monitoring" is monitoring of the development to provide data on compliance with the consent or on the environmental impact of the development, and an "environmental audit" is a periodic or particular documented evaluation of the development to provide information on compliance with the consent or the environmental management or impact of the development.

ACCESS TO INFORMATION

C19. At least 48 hours before the commencement of construction of the development and for the life of the development (or such other time as agreed by the Planning Secretary), the Applicant must:

- (a) make the following information and documents (as they are obtained or approved) publicly available on its website:
 - (i) the documents referred to in condition A2 of this consent;
 - (ii) all current statutory approvals for the development;
 - (iii) all approved strategies, plans and programs required under the conditions of this consent with the exception of any hazard and risk related studies;

- (iv) regular reporting on the environmental performance of the development in accordance with the reporting requirements in any plans or programs approved under the conditions of this consent;
 - (v) a comprehensive summary of the monitoring results of the development, reported in accordance with the specifications in any conditions of this consent, or any approved plans and programs;
 - (vi) a summary of the current stage and progress of the development;
 - (vii) contact details to enquire about the development or to make a complaint;
 - (viii) a complaints register, updated quarterly;
 - (ix) the Compliance Report of the development;
 - (x) audit reports prepared as part of any Independent Audit of the development and the Applicant's response to the recommendations in any audit report;
 - (xi) any other matter required by the Planning Secretary; and
- (b) keep such information up to date, to the satisfaction of the Planning Secretary.

APPENDIX 1 DEVELOPMENT LAYOUT PLANS

Job No.	Drawing Number	Drawing Title	Drawing Issue	Date
Architectural Drawings prepared by dem (aust) Pty Ltd				
4633-00	ar--1200	GS EAST BASEMENT FLOOR PLAN	a02	08/08/2025
4633-00	ar—1201	GS EAST GROUND FLOOR PLAN	a02	08/08/2025
4633-00	ar—1202	GS EAST & WEST LEVEL 1 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1203	GS EAST & WEST LEVEL 2 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1204	GS EAST & WEST LEVEL 3 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1205	GS EAST & WEST LEVEL 4 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1206	GS EAST & WEST LEVEL 5 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1207	GS EAST LEVEL 5 & GS WEST LEVEL 6 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1208	GS EAST LEVEL 6 & GS WEST LEVEL 7 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1209	GS EAST LEVEL 7 & GS WEST LEVEL 8 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1210	GS EAST LEVEL 8 & GS WEST LEVEL 9 FLOOR PLAN	a02	08/08/2025
4633-00	ar—1211	GS EAST & WEST ROOF PLAN	a02	08/08/2025
4633-00	ar—2210	GS EAST & WEST BUILDING SECTION 2	a02	08/08/2025
4633-00	ar—2211	GS EAST & WEST BUILDING SECTION 4	a02	08/08/2025
4633-00	ar—2212	GS EAST & WEST BUILDING SECTION 5	a02	08/08/2025
4633-00	ar—2213	GS EAST & WEST BUILDING SECTION 6	a02	08/08/2025
4633-00	ar—2501	GS EAST & WEST EAST ELEVATION	a02	08/08/2025
4633-00	ar—2502	GS EAST & WEST NORTH ELEVATION	a02	08/08/2025
4633-00	ar—2503	GS EAST & WEST SOUTH ELEVATION	a02	08/08/2025
4633-00	ar—2054	GS EAST & WEST WEST ELEVATION	a02	08/08/2025
4633-00	ar—3000	GS EAST BASEMENT FLOOR PLAN	a02	08/08/2025
4633-00	ar—3001	GS EAST GROUND FLOOR PLAN	a02	08/08/2025
4633-00	ar—3002	GS EAST & WEST LEVEL 1 DEMOLITION PLAN	a02	08/08/2025
4633-00	ar—3003	GS EAST & WEST LEVEL 2 DEMOLITION PLAN	a02	08/08/2025
4633-00	ar—3004	GS EAST & WEST LEVEL 3 DEMOLITION PLAN	a02	08/08/2025
4633-00	ar—3005	GS EAST & WEST LEVEL 4 DEMOLITION PLAN	a02	08/08/2025
4633-00	ar—3006	GS EAST & WEST LEVEL 5 DEMOLITION PLAN	a02	08/08/2025
4633-00	ar—3007	GS EAST LEVEL 5 & GS WEST LEVEL 6 DEMOLITION PLAN	a02	08/08/2025
4633-00	ar—3008	GS EAST LEVEL 6 & GS WEST LEVEL 7 DEMOLITION PLAN	a02	08/08/2025
4633-00	ar—3009	GS EAST LEVEL 7 & GS WEST LEVEL 8 DEMOLITION PLAN	a02	08/08/2025
4633-00	ar—3010	GS EAST ROOF & GS WEST LEVEL 9 DEMOLITION PLAN	a02	08/08/2025

APPENDIX 2 RECEIVER LOCATIONS



Legend

Residential		Place of Worship	
Hotel		Child Care	
Commercial		Passive recreation	
Unattended Noise Monitors			

APPENDIX 3 APPLICANT'S MANAGEMENT AND MITIGATION MEASURES

Updated Mitigation Measures		
Item/Impact	Supporting Documentation	Recommended Measures
Construction Noise and Vibrations	Appendix 7 to the RTS – Updated Noise and Vibration Impact Assessment	General Management Measures: - Introduce best-practice general mitigation measures in the workplace which are aimed at reducing the acoustic impact onto the nearest affected receivers. Project Notification: - Issue project updates to stakeholders, discussing overviews of current and upcoming works. Advanced warning of potential disruptions can be included. - Content and length to be determined on a project-by-project basis. Verification Monitoring: - Monitoring to comprise attended or unattended acoustic surveys. The purpose of the monitoring is to confirm measured levels are consistent with the predictions in the acoustic assessment, and to verify that the mitigation procedures are appropriate for the affected receivers. - If the measured levels are higher than those predicted, then the measures will need to be reviewed and the management plan will need to be amended. Complaints Management System: - Implement a management system which includes procedures for receiving and addressing complaints from affected stakeholders. Specific Notification: - Individual letters or phone calls to notify stakeholders that noise levels are likely to exceed noise objectives. - Alternatively, contractor could visit stakeholders individually in order to brief them in regards to the noise impact and the mitigation measures that will be implemented. Respite Offer: - Offer provided to stakeholders subjected to an ongoing impact. Alternative Construction Methodology: Contractor to consider alternative construction options that achieve compliance with relevant criteria. Alternative option to be determined on a case-by-case basis. It is recommended that the selection of the alternative option should also be determined by considering the assessment of on-site measurements (refer to Verification Monitoring above).

Construction Vibration Mitigation Measures	Appendix 7 to the RTS – Updated Noise and Vibration Impact Assessment	The following vibration mitigation measures should be implemented: • Any vibration generating plant and equipment is to be in areas within the site to lower the vibration impacts. • Investigate the feasibility of rescheduling the hours of operation of major vibration generating plant and equipment. • Use lower vibration generating items of construction plant and equipment; that is, smaller capacity plant. • Minimise conducting vibration generating works consecutively in the same area (if applicable). • Undertake the removal of concrete within the building using saw cutting or pulverising where possible.
Noise and Vibration Monitoring	Appendix 7 to the RTS – Updated Noise and Vibration Impact Assessment	Noise monitoring, if required, will be performed by an acoustic consultant directly engaged by the contractor in accordance with the projects Conditions of Consent. Noise monitoring is recommended to be undertaken by attended noise measurements at the start of any new phase of works (i.e. demolition, ground works or remediation works etc.). The statistical parameters to be measured should include the following noise descriptors: LAmin, LA90, LA10, LA01, LAmix and LAeq. Unattended noise measurements should be conducted over consecutive 15-minute periods. The survey methodology and any equipment should comply with the requirements discussed in Standard AS 1055.1- 1997. As part of the management of noise and vibration from the proposed demolition and ground works activities to be undertaken on the site the following noise and vibration measurements are recommended to be undertaken: 1. Noise Monitoring – a. Attended noise level measurements of typical demolition and ground works activities should be undertaken at site. Attended construction noise surveys of the site and surrounding impacts on neighbours should be undertaken during the following as a minimum: i. Commencement of piling activities. ii. In response to any ongoing complaints received from neighbours. 2. Vibration Monitoring– To confirm vibration magnitudes are within the expected levels the following attended vibration measurements are required: a. Short term attended vibration measurements – Attended short term vibration measurement of activities with the potential to generate maximum vibration to be undertaken on commencement at the site, including the following: i. Measurements to be undertaken at a representative location from the activity being conducted with a similar distance to the potentially affected receiver. ii. Activities with the potential to generate the greatest magnitudes of vibration include: iii. Piling works.

Community Consultation	Prior to the works onsite being undertaken, community consultation with the neighbouring affected parties be undertaken. Community engagement and consultation should not be limited to the beginning of the onsite works but throughout, providing the community with constant updates on the progress and upcoming works. In our experience these could include: • Site noticeboard, • Email notifications; and • Letterbox drops. Complaints management system Should complaints arise they must be dealt with in a responsible and uniform manner, therefore, a management system to deal with complaints is detailed below: Local residents and landowners should be informed by direct mail of a direct 24-hour telephone line where any noise complaints related to the required ground works will be recorded. The 24-hour telephone line number will be made available on the construction site signage. All complaints should be investigated by the Contractor in accordance with the procedures outlined in Australia Standard 2436-2010. Consequently, a complaint response procedure should be implemented. Information to be gathered as part of this process should include: • location of complainant • time/s of occurrence of alleged noise or vibration impacts • nature of impact particularly with respect to vibration • Perceived source • Prevailing weather conditions and similar details that could be utilised to assist in the investigation of the complaint. All resident complaints will be responded to in the required timeframe and action taken recorded. Post receiving a noise and or vibration complaint, the process outlined in the Contingency Plans below should be undertaken. Contingency plans Contingency plans are required to address noise or vibration problems if excessive levels are measured at surrounding sensitive receivers and/or if justified complaints occur. Such plans include: • Stop the onsite works. • Identify the source of the main equipment within specific areas of the site which is producing the most required ground works noise and vibration at the sensitive receivers; and • Review the identified equipment and determine if an alternate piece of equipment can be used or the process can
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		• be altered. • In the event an alternate piece of equipment or process can be used, works can re-commence. • In the event an alternate piece of equipment or process cannot be determined implement a construction assessment to be performed by a suitably qualified acoustic consultant. • Respite periods to be scheduled during potentially noise sensitive periods of the surrounding receivers. The Superintendent (if the Superintendent has been allocated to the project) shall have access to view the Contractor's noise measurement records on request. The Superintendent may undertake noise monitoring if and when required.
Operational Noise and Vibrations	Appendix 7 to the RTS – Updated Noise and Vibration Impact Assessment	As detailed in the NVIA, compliance with the established noise criteria will be achieved provided the recommended noise control measures are implemented, as outlined below: Air Intake Plenum S1 and S2: • An acoustic attenuator (or equivalent) and acoustic Air Plenum to be installed at the southern side of the plant room on level 8. Air Intake Plenum N1 and N2: • An Acoustic Air Plenum to be installed at the northern side of the plant room on level 8. • The construction of the plenum walls shall be solid material, no penetration between plenum floor to below and adjacent space. • Where infill materials are exposed to the weather, they shall be lined with an impervious film to prevent the ingress of moisture. • Acoustic louvres to be installed at following locations. ○ level 7 east side of the facades ○ level 7 North and South side of the façades ○ level 7 West side of the façades ○ level 8 west side of the façades Roof Opening Plenum: • Acoustic Air Plenum to be installed at the roof opening on level 8 plant room: ○ The plenum wall shall be covered with infill materials either be rockwool or fiberglass (or equivalent) which have a minimum density of 24kg/m3 ○ The construction of the plenum walls shall be solid material, no penetration between plenum floor to below and adjacent space.

		○ The infill material shall be either rockwool or fibreglass to have a minimum density of 24kg/m³ ○ The infill material shall be covered with a membrane to prevent erosion of the fibres, then encased in galvanised perforate sheet metal. The infill material shall have a minimum thickness of 50mm. ○ Where infill materials are exposed to the weather, they shall be lined with an impervious film to prevent the ingress of moisture. Emergency Backup Generators: • The generators on level 7 and 5 at SYD East are to be containerised units which feature attenuators on the air intakes and mufflers or attenuators on the exhaust ducts. The enclosed generators are to comply with a sound power level of 110 dB(A) with enclosure to comply with ISO 3744:2010. The inductive selection of the generator is provided by LCI. Due to the early stage of the Proposal, the final selection of the generator has not been determined yet, further acoustic assessment is required once the selection has been presented for review. Other Mechanical Services: • The sound power levels of the proposed mechanical units are to be equivalent or below the sound levels listed in section 7.2 of the NVIA for the night-time period operation. Any proposed exhaust opening is to be designed to have a minimum 5m of acoustic lined duct work with 50mm acoustic lining. In addition, the ductwork is to consist of a minimum of two bends/turns.
Cumulative Noise and Vibrations	Appendix 7 to the RTS – Updated Noise and Vibration Impact Assessment	Cumulative construction noise impacts can be suitably managed and mitigated through the preparation of a CNVMP by the contractor.
Construction Air Quality	Appendix 11 – Air Quality Impact Assessment	Inclusion of the following air quality mitigation and management measures recommended for the site within in the Construction Environmental Management Plan (CEMP): 1 Communications: 1.1 Develop and implement a stakeholder communications plan that includes community engagement before work commences on site. 1.2 Display the name and contact details of person(s) accountable for air quality and dust issues on the site boundary. This may be the environment manager/engineer or the site manager. 1.3 Display the head or regional office contact information. 1.4 Develop and implement a Dust Management Plan (DMP), which may include measures to control other emissions, approved by the relevant regulatory bodies. 2 Site management:

		2.1 Record all dust and air quality complaints, identify cause(s), take appropriate measures to reduce emissions in a timely manner, and record the measures taken. 2.2 Make the complaints log available to the relevant authority when asked. 2.3 Record any exceptional incidents that cause dust and/or air emissions, either on- or offsite, and the action taken to resolve the situation in the log book. 2.4 Hold regular liaison meetings with other high-risk construction sites within 500 m of the site boundary, to ensure plans are coordinated and dust and particulate matter emissions are minimised. It is important to understand the interactions of the off-site transport/ deliveries which might be using the same strategic road network routes. 3 Monitoring: 3.1 Undertake daily on-site and off-site inspections where receptors (including roads) are nearby, to monitor dust, record inspection results, and make the log available to the relevant authority when asked. This should include regular dust soiling checks of surfaces such as street furniture, cars and window sills within 100m of site boundary. 3.2 Carry out regular site inspections to monitor compliance with the dust management plan / CEMP, record inspection results, and maintain an inspection log available to the relevant authority when asked. 3.3 Increase the frequency of site inspections by the person accountable for air quality and dust issues on site when activities with a high potential to produce dust are being carried out and during prolonged dry or windy conditions. 4 Preparing and maintaining the site: 4.1 Plan site layout so that machinery and dust causing activities are located away from receptors, as far as is possible. 4.2 Erect solid screens or barriers around dusty activities or the site boundary that they are at least as high as any stockpiles on site. 4.3 Fully enclose site or specific operations where there is a high potential for dust production and the site is active for an extensive period. 4.4 Avoid site runoff of water or mud. 4.5 Keep site fencing, barriers and scaffolding clean using wet methods. 4.6 Remove materials that have a potential to produce dust from site as soon as possible, unless being re-used on site. If they are being re-used on-site cover as described below 4.7 Cover, seed or fence stockpiles to prevent wind erosion 5 Operating vehicle/machinery and sustainable travel: 5.1 Ensure all on-road vehicles comply with relevant vehicle emission standards, where applicable 5.2 Ensure all vehicles switch off engines when stationary - no idling vehicles
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		5.3 Avoid the use of diesel or petrol-powered generators and use mains electricity or battery powered equipment where practicable Impose and signpost a maximum-speed-limit of 25 km·h⁻¹ on surfaced and 15 km·h⁻¹ on unsurfaced haul roads and work areas (if long haul routes are required these speeds may 5.4 be increased with suitable additional control measures provided, subject to the approval of the nominated undertaker and with the agreement of the relevant authority, where appropriate 5.5 Produce a Construction Logistics Plan to manage the sustainable delivery of goods and materials. 5.6 Implement a Travel Plan that supports and encourages sustainable travel (public transport, cycling, walking, and car-sharing) 6 Operations: Only use cutting, grinding or sawing equipment fitted or in conjunction with suitable dust 6.1 suppression techniques such as water sprays or local extraction, e.g. suitable local exhaust ventilation systems 6.2 Ensure an adequate water supply on the site for effective dust/particulate matter suppression/ mitigation, using non-potable water where possible and appropriate 6.3 Use enclosed chutes and conveyors and covered skips 6.4 Minimise drop heights from conveyors, loading shovels, hoppers and other loading or handling equipment and use fine water sprays on such equipment wherever appropriate 6.5 Ensure equipment is readily available on site to clean any dry spillages and clean up spillages as soon as reasonably practicable after the event using wet cleaning methods. 7 Waste management: 7.1 Avoid bonfires and burning of waste materials.
Operational Air Quality	Appendix 11 – Air Quality Impact Assessment	Maintenance under the testing schedule must be performed as outlined in Section 2.3.2 of the AQIA. Operation of the emergency generators should be minimised as far as practicably possible.
Construction Traffic and Transport	Appendix 17 – Construction Traffic Management Plan	General requirements for the management of construction traffic are summarised as follows: - All vehicles transporting loose materials will have the entire load covered and/or secured to prevent any large items, dust or dirt particles depositing onto the roadway during travel to and from the site; - All subcontractors must be inducted by the Principal Contractor to ensure that the procedures are met for all vehicles entering and exiting the construction site.

		• The Principal Contractor shall monitor the roads leading to and from the site and take all necessary steps to rectify any road deposits caused by site vehicles. • Vehicles operating to and from and within the site shall do so in a manner, which does not create unnecessary noise or vibration. • No tracked vehicles will be permitted or required on any paved roads • Public roads and access points will not be obstructed by any materials, vehicles, refuse skips or the like, under any circumstances. • No construction vehicles are permitted to double park, or park on the public road. • No building, demolition, excavation or material of any nature and no hoist, plant and machinery (crane, concrete pump or lift) shall be placed on Council's footpaths, roadways, parks or grass verges without Council approval. • No trees or native shrubs or understorey vegetation on public property (footpaths, roads, reserves, etc.) or on the land to be developed shall be removed or damaged during construction unless specifically approved in this consent including for the erection of any fences, hoardings or other temporary works. Construction Work Hours Construction work hours are as follows: • Monday – Friday: 7am - 6pm • Saturday: 8am - 1pm • No works on Sunday or public holidays It is noted that all work outside of the approved hours require approval from Council, prior to any works being undertaken. Construction Staging The delivery of the Proposal will be carried out over 2 stages, as follows: • Stage 1 (site establishment): 3 months • Stage 2 (main work construction): 21 months Construction Site Access: Construction vehicles will only access the designated work zone on Pymont Street. No construction vehicles will require direct access to the site itself. Transport Routes: The construction vehicle routes have been determined taking into consideration the surrounding road network. The proposed truck access and egress routes to be prescribed to all vehicles coming to and departing from the construction site are shown in Figure 44 below.
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		Construction Worker Parking: Due to the site's central location, a significant portion of staff are expected to commute via public transport. For contractors and staff who drive to the site, paid parking options are available at ICC Sydney. It is noted that on-street parking surrounding the site is time-restricted and therefore is not recommended for long-term parking. Traffic Generation: Construction is expected to generate approximately 33 light vehicles per day, equating to 0.5–1 vehicle per minute during peak hours. As detailed in the CTMP, this is not considered to have a significant impact on the surrounding road network. The generation of heavy vehicle traffic during the construction phase of the development equates to approximately 20 vehicle movements per day (10 inbound and 10 outbound). Construction vehicles typically arrive prior to the typical road network peak to start work in the morning. Likewise, in the afternoon, the potential impact of the additional trips associated with construction vehicles is not expected to have a significant effect on the surrounding road network. Mitigation Measures: To mitigate cumulative construction traffic impacts, the Principal Contractor will: • Coordinate scheduling with Sydney Metro and other contractors to avoid traffic conflicts. • Ensure heavy vehicle movements are staggered and do not coincide with peak commute hours. • Implement monitoring measures to adjust traffic strategies if needed. Given these measures, the cumulative impact on the surrounding road network is expected to be minimal, and construction-related traffic will be effectively managed.
Operational Traffic and Transport	Appendix 24 – Green Travel Plan	The following potential measures and initiatives could be implemented to encourage more sustainable travel modes: • Encouraging staff to work to work as the entire or part of their journey, through: ◦ Collaboration with Council and TfNSW to determine whether there are opportunities to improve the pedestrian connectivity to the site; ◦ Conduct regular walking and running events; ◦ Annual campaigns to promote 'walk to work' days; and ◦ Providing adequate EOT facilities and lockers. • Increase journeys to the site by cycling, through: ◦ Collaboration with Council and TfNSW to determine whether there are opportunities to improve bicycle connectivity to the site; ◦ Create maps and bike routes, which link to surrounding key amenities and available facilities; ◦ Provide secure, internal EOT facilities with bike storage racks and shower and change amenities;

		o Ensure visitor bicycle racks are positioned in an accessible and sheltered location that provides good passive surveillance and are easily visible to visitors; and Annual campaigns to promote 'Cycle to Work' days.
Dangerous Goods	Appendix 18 – Dangerous Goods Report	Design Requirements: • The design requirements detailed within this report shall be adhered to in the development of the design for the facility. • Spillage containment with a net capacity of at least 14 m³ shall be installed for the power transformers. • The cell manufacturer shall ensure that the Li-ion battery modules and BMS are compliant with the testing requirements of UL9540A, or the more contemporary version (Ref. [4]). • Personnel shall be trained to ensure that the inactive leaf remains in the closed position when not in use. • At least one (1) carbon dioxide portable fire extinguisher shall be provided on each floor. • A floodwater and stormwater risk assessment shall be performed for the site. • A Fire Safety Study shall be prepared in accordance with HIPAP No. 2. • FM Global Datasheet 5-32 shall be adopted as the design basis for the facilitation with respect to the lithium-ion batteries, as appropriate as determined and agreed with FRNSW through the Fire Safety Study Process. • An automated sprinkler system shall be installed in accordance with increased design density and area of operation to comply with FM Global DS 5-32 for the data halls and FM Global DS 5-33 for the battery rooms. • Battery Management System (BMS) shall be provided to monitor and protect the Lithium-ion batteries, shutting them down on fault / over temperature to prevent thermal runaway. • Off gas detection system in the battery room shall be provided to provide early detection and will be linked to the FIP. The system will automatically alert the fire brigade upon alarm. Additionally, on activation, the exhaust fans will run in emergency mode. • An Emergency Warning and Intercommunication System (EWIS) will be provided throughout all parts of the building and designed in accordance with the prescriptive requirements of provision E4D9 of NCC 2022. • An automatic mechanical ventilation system shall be provided. • At least one (1) carbon dioxide portable fire extinguisher shall be provided on each floor. Documentation Requirements: • A Dangerous Goods Register, indicating the type of chemical, any notations that may be required from the risk assessment and the Safety Data Sheet for the chemical shall be prepared. • A Placard Schedule shall be prepared.

		• A Manifest and notification shall be submitted to SafeWork NSW. • A DG Risk Assessment of the storage and handling areas shall be prepared. An Emergency Response Plan (ERP) shall be prepared.
Infrastructure Requirements	Appendix 42 – Utility Services Report	Electrical Infrastructure: No construction works will be required on-site, or at the substation. To prevent de-rating of the feeders at the Union St and Pyrmont St intersection, an ASP L3 Designers will be appointed to undertake a design for the re-routing required. Water Sensitive Urban Design: The Proposal will employ the following Water Sensitive Urban Design (WSUD) strategies: • Reduce water consumption, through: ◦ Use of evaporative coolers within air handling units and cooling towers for mechanical cooling ◦ Use of high-efficiency water fixtures with WELS ratings ◦ Use of Water-side free cooling ◦ Maintenance of the site so there is no discharge of cooling water to stormwater • Recycled water and reuse, through: ◦ Use of 2x5000L existing rainwater tanks • Low-irrigation demand plant selection, and Strategic water metering, including the use of building-level and sub-metering to monitor and record the water consumption of the development.
Ecologically Sustainable Development	Appendix 9 – Ecologically Sustainable Development Report	Design: In accordance with the Proposal's sustainability principles, the development has been designed to pursue the following energy and water initiatives: • 80%+ increase in power efficiency relative to the IT energy consumption; • PUE target of 1.27 annual average uplifting from current 2.15 for existing facility; • 30%+ reduction in water consumption relative to the IT energy consumption; and • Improved WUE to a target 1.9 annual average from the current 2.74 for the existing facility. Electrification:

		100% of the development's energy demand is to be met using electricity. Doing so will ensure the development is future-proof as the electrical grid greens, embedding resilience. Using electricity over fossil-fuels for operations on site also increases overall efficiency of the development as wasted energy through the conversion of energy is minimized. This also aligns with the Government's goal of net zero emissions by 2050. Net Zero: In addition to the energy efficiency and on-site renewable energy initiatives being pursued for the development, a plan for pursuit of Net Zero emissions in operations is being considered by the Proponent where cost effective. The plan for consideration includes initiatives such as: • Procurement of non-fossil fuel-based diesel fuel such as bio-diesel for some or all of the fuel stored on-site for emergency backup power. This would lead to a reduction in emissions from the diesel fuel in the order of 75%; and • Procurement of renewable electricity for data hall infrastructure power. Consideration would be to phase in stepped percentages of renewable electricity supply over several years with the outlook of using 100% renewable electricity for data hall infrastructure by 2040, considering market conditions. On-site Solar PV: On-site PV is being pursued for the design maximised to the available roof space, coordinating with the roof area allocated to other plant. The project will incorporate a solar photovoltaic (PV) system with a minimum rated capacity of 100 kWe and aspirational target of 125 kWe subject to the availability of roof space to be finalised during detailed design. At the minimum 100kWe capacity on-site solar PV pursued, generated energy is estimated to exceed 125,000 kWh/yr that will be 100% utilised by the development. Lighting: The proposed development will use robust, long-life LED lighting throughout the building for all new luminaires, to reduce power demand and energy consumption. Occupant responsive controls will be utilised to ensure lighting is only engaged when required by occupants and dimmed or switched off when unoccupied to further reduce energy consumption. The long life of LEDs also reduces the need for replacement, which limits waste and its associated impact on the environment. Energy Metering: Energy meters at the building level, and sub-meters on major plant elements, will be provided to enable ongoing tracking of energy consumption and identification of targeted energy management strategies to reduce consumption. Backup Power - Uninterruptible Power Supply (UPS) System: Utilisation of static UPS (battery type) for new backup power in lieu of rotary flywheel style backup. Battery UPS provides a significant reduction and associated energy consumption of standby losses in comparison to rotary units. Passive Cooling and Heating Design:
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		• Continuous Roof and External Wall Insulation: Passive design elements in the building envelope reduce the cooling and heating requirement, however this doesn't have any significant effect on the cooling and heating demand of the data halls where internal heat gains from equipment dominate. In these instances, excessive insulation can even be counterproductive. The development will maximise the use of continuous insulation where appropriate to avoid the reduction of the thermal performance of the insulation through thermal bridging, whereby heat is gained through structural members. • High-performance Glazing Systems: Although glazed elements within the development are minor, where utilised consideration will be given to high-performance glazing systems. Low whole system U-Values will reduce the amount of heat conduction through the window, including the glass and the frames, while low SHGC will reduce unwanted solar heat gain. • Plant Screening from Solar Exposure: Rooftop plant and mechanical equipment will primarily be screened from solar exposure within the designed structure and architectural form, limiting heat gain on equipment and ductwork. Mechanical Services: • Elevated Data Hall Conditions and Direct to Chip Cooling: Significant improvements to mechanical system energy are supported through relaxed data hall air temperature and humidity control setpoints, in combination with direct to chip cooling fluid loops for improved heat exchange and utilisation of free cooling. Direct to chip cooling allows for the elevation of data hall conditions, reducing overall mechanical plant loads and energy consumption. • Chiller Plant: The new chiller plant which produces cooling chilled water will be of very high efficiency, gained through current technology and by operating at elevated chilled water temperatures. Providing direct to chip cooling and elevated hall temperatures allows the chilled water temperature to reset upwards, optimising compressor efficiency and reducing subsequent energy consumption. • Waterside Free Cooling: Cooling will be provided direct from the cooling towers bypassing the chiller plant to further improve efficiency as ambient conditions allow. The combination of the elevated hall conditions and direct to chip cooling increases the annual operating time. The use of waterside free cooling further reduces energy consumption. Water Minimisation: • Mechanical Plant Water Consumption: The elevated hall conditions and direct chip cooling reduces the load density handled by the mechanical plant relative to IT load density, reducing the relative loads handled by the cooling towers. Combined with modern water efficient cooling tower technology, this leads to reductions in associated water consumption for the design. • Rainwater Capture and Reuse: Rainwater capture and reuse is being considered within the design to provide an offset for operational water consumption. Due to the multi-storey design and high load density across the floors, water consumption will be high, relative to the potential offset from available rainwater, notwithstanding whether all water which falls on the site is able to be captured.
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		• Low-Irrigation Demand Plant Selection: Plants with low or zero ongoing irrigation demands are being considered for the development to reduce watering requirements. The potential for plants that require low or nil ongoing irrigation will contribute significantly towards water usage reduction. • Strategic Water Metering: Building-level and sub-metering will be provided to monitor and record the water consumption of the overall development, as well as irrigation systems, water fixtures and water use for the mechanical systems. This will enable ongoing tracking for identification of targeted strategies to minimise operational water consumption. Waste Minimisation: • Construction and Demolition Waste Reduction: Construction and demolition waste will be reduced by diverting waste from landfill. The Proposal will identify the potential waste streams and their expected quantities, collection and diversion methods for each waste stream, roles and responsibilities, and the waste haulers to be engaged. Targets will be set for waste during this phase with ongoing monitoring throughout construction to ensure Proposal is on track. Operational waste management: Provision of facilities for the separate collection of identified operational waste streams will be made to aid waste recycling of appropriate streams. Sufficient space for the required bins will be provided including a storage area that is easily accessed by facility operators and council waste collection.
Aboriginal Cultural Heritage	Appendix 9 – Aboriginal Cultural Heritage Assessment Report Appendix 15 – Connecting with Country Framework	As detailed in the framework, DEM and the DigiCo Design Team will continue to develop the design themes outlined in the CwC Report to understand how they can be applied to the Proposal. The importance of continuing the relationships formed between the Proposal Elders and the design team is highlighted, noting that there will need to be ongoing design validation provided as concepts shift and change with the delivery of the Proposal. Further, it is noted that there are several skilled and experienced First Nations businesses who can assist in the delivery of the Proposal, specifically in relation to art, lighting and landscaping deliverables. The engagement of these businesses is identified as a meaningful opportunity for DigiCo to empower the First Nations community through economic development.
Non-Aboriginal Heritage	Appendix 37 – Statement of Heritage Impact Appendix 25 – Historical Archaeological Assessment	Notwithstanding the proposed works have been assessed as having no impact on the heritage significance of the Ultimo HCA or nearby heritage items, the following recommendations have been made to appreciate the historical use of the site as a Government Printing Office and convey this association with the visitors of the DigiCo Building: • An interpretation plan, incorporating the recommendations and outcomes of the Connecting with Country, should be prepared by an experienced heritage interpretation practitioner. The interpretation plan shall be in accordance with the Heritage Council's "Interpreting Heritage Places and Items Guidelines" 2005. The plan must interpret the multiple uses and history of the site and its immediate heritage context in a way that is engaging, informative and readily accessible to the majority of visitors. Full details should be included in documentation for a Construction Certificate application. <u>Non-Aboriginal Archaeological Heritage</u> Notwithstanding the site has been assessed as having low to nil potential for surviving archaeological resources, the following recommendations have been made with regard to the Proposal:

		• No further archaeological assessments are necessary for the subject site, including for future SSDAs; • This report is provided to Heritage NSW for inclusion in the library; and • If the subject site is to be excavated, an unexpected finds procedure should be applied (in the event of deep historically excavated features). The following management measures are appropriate should any unexpected impacts occur: Unexpected finds protocol – If unexpected finds of historical or archaeological nature are discovered during any work, work within 5 m of the find must cease and the following steps taken: • an archaeologist will be contacted to assess the find and determine if it is clearly a relic or has moderate to high potential to be a relic (this may require additional research); • if the find is determined to be a relic, a s146 (of the Heritage Act) is to be forwarded to the Heritage Council who will be consulted on the appropriate management measure; and • if the find is assessed and is not a relic, work inside the area that was made a no-go area can re-commence. Human remains protocol – In the event that known or suspected human remains (generally in skeletal form) are encountered during the activity, the following procedure will be followed immediately upon discovery: • all work in the immediate vicinity will cease and the find will be immediately reported to the work supervisor who will advise the Environment Manager or other nominated senior staff member; • the Environment Manager or other nominated senior staff member will promptly notify the police (as required for all human remains discoveries); • the Environment Manager or other nominated senior staff member will contact Heritage NSW for advice on identification of the human remains; • if it is determined that the human remains are Aboriginal ancestral remains, the Local Aboriginal Land Council will be contacted, and consultative arrangements will be made to discuss ongoing care of the remains; and if it is determined that the human remains are not Aboriginal ancestral remains, the coroner will be contacted by the police and further investigation will be conducted to determine if the remains represent a historical grave or if police involvement is required.
Tree Protection	Appendix 4 to the RTS – Updated Tree Management Plan	• Trees T20 – T26 and T33 – T43 are subject to a 'negligible or minor' impact and are capable of being managed in accordance with standard practices contained within Appendix 41. • T27 has been identified for removal within Landscape Plan la--0200 showing three (3) replacement trees as compensation for tree removal. • Trees T28, 29, 30, 31 & 32, are subject to a 'moderate- moderate high' impact and as such require the implementation of the following specific tree protection measures:

		- o No excavation is to occur within the 2.7m SRZ radius without arborist advice, tree root investigation and certification; - o Excavations within the 7.2m radial TPZ are to be supervised by an appointed site arborist with all excavations conducted manually, carefully by hand to ensure critical roots remain undamaged; - o At no stage are critical roots as assessed by a supervising arborist to be pruned to accommodate works. New works are to ensure critical roots are retained utilising tree sensitive design & construction that is to include structures, garden bed edging or similar are to be suspended over extending root systems.
Waste Management	Appendix 29 – Operational Waste Management Plan Appendix 16 – Construction and Demolition Waste Management Plan	Operational Waste Mitigation Measures Operational waste to be managed in line with current waste management practices at the site. Construction Waste Mitigation Measures The following mitigation measures are recommended: • Waste generated during the demolition and construction stage of the development will be managed by the principal contractor and sub-contractors in line with the mitigation measures included in the CDWMP. • Where possible, all demolition and construction materials would be recycled either on-site through reuse or offsite at a licensed facility. Waste would be transported and disposed of offsite by a licensed contractor to a licensed landfill facility. Signs which clearly identify waste management procedures and provisions to contractors, staff and visitors will be posted at the Development as appropriate. The design and use of safety signs will comply with Australian Standard AS 1319 for safety signs and Australian Standards and NSW EPA for recycling signage, and clearly describe the types of materials designated for each bin.
BCA Compliance and Accessibility	Appendix 10 – Access Capability Statement Appendix 12 – BCA Capability Statement	Proposed variations from the BCA deemed-to-satisfy (DtS) provisions and the relevant performance solutions are to be addressed during the detailed design phase prior to the issue of a Construction Certificate (CC).
Reflectivity	Appendix 33 – Reflectivity Report	Choice of cladding materials to be confirmed during the detailed design phase of the development (post-approval) as to consider any significant changes which may occur to the materiality of the final building façade. This will ensure that proposed development will not result in Motorist Disability Glare or Pedestrian Nuisance Glare in any surrounding locations.
Wind	Appendix 20 – Environmental Wind Impact Report Appendix 21 –	Retention of the existing trees on all sides of the development, which will help mitigate the impact of local wind speeds. The existing tree on the corner of Pyrmont and Quarry Streets is deciduous. The current landscape Proposal is to remove this tree and replace it with three evergreens (Angophoras). This will enhance the wind environment at this location. Maintain current setbacks, and the existing awning above the pedestrian walkway along Harris Street, which will continue

	Environmental Wind Tunnel Study	to ameliorate potential downwash winds under westerly wind conditions.
Contamination	Appendix 32 – Preliminary Site Investigation Report	In order to manage and mitigate any potential localised contamination risks during construction, the PSI recommends that if the strengthening of the existing foundations and/or any form of excavation works is deemed required, surplus soils would need to be disposed off-site. Soil sampling from geotechnical boreholes and chemical analysis is recommended to assess and characterise the underlying soils at the site with respect to contamination, for the purpose of off-site disposal as per current EPA guidance. Any surplus soils should be classified for off-site disposal. Where footing strengthening of the existing foundations are deemed required by the project structural engineer, then it is also recommended that further soil investigations are conducted within the building footprint which include an assessment of depth to groundwater.
Geotechnical	Appendix 23 – Geotechnical Desktop Assessment Report	Detailed design to implement recommendations of Geotechnical Report.
Structural Engineering	Appendix 39 – Structural Report	• The Proposal will be designed to ensure compliance with current Australian Standards and the NCC 2022/25. • The proposed strengthening works will address increased structural demands, maintaining the safety and integrity of both buildings. • All structural elements that form part of the new extension will target 100%NBS and the existing East and West buildings will target 67%NBS and 34%NBS respectively as a performance solution to achieve a practical and risk averse building upgrade. As the Proposal progresses, the proposed structural solution will be further refined in the detailed design development stage and based on ongoing site investigations and requirements by consent and certifying authorities.
Public Art	Appendix 31 – Preliminary Public Art Plan	Conservation measures during construction Recommended conservation measures include the following: • Artwork void access panels to remain closed while active construction is ongoing; • DigiCo to maintain a stable temperature within the building during construction; • No footing work is to be undertaken within the area of the existing Public Art; • Construction personnel to remain in permitted areas; and • Construction materials to be transported via Pyrmont Street or via an internal crane. Maintenance recommendations Additionally, the plan provides the following maintenance recommendations:

		• The LED lights require replacing as soon as possible, to ensure the artwork has an effective nighttime presence. It is recommended that, as a minimum, a new LED strip be adhered to the metal frame of the window at the base of the artwork void and attached to the middle of the frame. Ideally, a new lighting approach should be considered, potentially incorporating a series of small spotlights installed in the floor; • A comprehensive clean of the artwork void is undertaken, including the removal of all dust and debris from the floor; • A thorough clean of the glass window is undertaken, including both outside and inside surface clean; • It is recommended that a full artwork clean be undertaken, including but not limited to: ◦ the replacement of any elements showing signs of wear; and the varnishing of all elements not replaced.
Social Impacts	Appendix 35 – Social Impact Assessment	Implement mitigation measures identified in other specialist reports.

APPENDIX 4 INCIDENT NOTIFICATION AND REPORTING REQUIREMENTS

WRITTEN INCIDENT NOTIFICATION REQUIREMENTS

1. All incident notifications and reports must be submitted via the NSW planning portal (Major Projects).
2. The Applicant must provide notification as required under these requirements, even if the Applicant fails to give the notification required under condition C12 or, having given such notification, subsequently forms the view that an incident has not occurred.
3. Within **7 days** (or as otherwise agreed by the Planning Secretary) of the Applicant making the immediate incident notification (in accordance with condition C12), the Applicant is required to submit a subsequent incident report that:
 - (a) identifies how the incident was detected;
 - (b) identifies when the Applicant became aware of the incident;
 - (c) identifies any actual or potential non-compliance with conditions of consent;
 - (d) identifies further action(s) that will be taken in relation to the incident;
 - (e) a summary of the incident;
 - (f) outcomes of an incident investigation, including identification of the cause of the incident;
 - (g) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence, including the period for implementing any corrective and/or preventative actions; and
 - (h) details of any communication with other stakeholders regarding the incident.
4. The Applicant must submit any further reports as directed by the Planning Secretary.

INCIDENT REPORT REQUIREMENTS

5. If requested by the Planning Secretary, within 30 days of the date on which the incident occurred or as otherwise agreed to by the Planning Secretary, the Applicant must provide the Planning Secretary and any relevant public authorities (as determined by the Planning Secretary) with a detailed report on the incident addressing all requirements below, and such further reports as may be requested.
6. The Incident Report must include:
 - (a) a summary of the incident;
 - (b) outcomes of an incident investigation, including identification of the cause of the incident;
 - (c) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence; and
 - (d) details of any communication with other stakeholders regarding the incident.